IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA.

In the matter of an application for mandates in the nature of Writs of Certiorari, Mandamus and Prohibition under and in terms of Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

C.A. Application No.
Writ 421/2017

1. Amal Wijemuni
No. 3,
Simon Abeywickrama Avenue,
Mount Lavinia.

1. Kishan Ratnayake
No. 4,
Simon Abeywickrama Avenue,
Mount Lavinia.

2. Thushil Abeysuriya
No. 71,
Hotel Road,
Mount Lavinia.

3. Ranjith Senanayake
No. 11 B,
Beach Road,
Mount Lavinia.

4. Lincoln Fernando
No. 4,
Lilian Avenue,
Mount Lavinia

Petitioners

Vs.

1. Dehiwala-Mount Lavinia Municipal Council,
Galle Road,
Dehiwala.

2. M.M.C.K.K. Manapperuma,
Municipal Commissioner,
Dehiwala-Mount Lavinia Municipal Council,
Galle Road,
Dehiwala.

2A. Manoja Pathirana,
Actg. Municipal Commissioner,
Municipal Commissioner,
Dehiwala-Mount Lavinia Municipal Council,
Galle Road,
Dehiwala.

2B. A.A.V. Sampath
Municipal Commissioner,
Dehiwala Mount Lavinia Municipal Council,
Galle Road,
Dehiwala.

2C. K.D. Parakum Shantha
Mayor
Dehiwala -Mount Lavinia Municipal Council,

Galle Road,
Dehiwala.

3. Urban Development Authority
6th, 7th and 9th Floors,
"Sethsiripaya",
Battaramulla.

4. Nimesh Herath
Urban Development Authority,
6th, 7th and 9th Floors,
"Sethsiripaya",
Battaramulla.

4A. L.B. Kumudu Lal
Chairman,
Urban Development Authority,
6th, 7th and 9th Floors,
"Sethsiripaya",
Battaramulla.

4B. Senior Professor Kapila C.K. Perera
Chairman (Acting),
Urban Development Authority,
6th, 7th and 9th Floors,
"Sethsiripaya",
Battaramulla.

5. Patali Champika Ranawaka,
Hon. Minister of Megapolis and Western Development,
17th and 18th Floors,
"Suhurupaya",
Subhuthipura Road,
Battaramulla.

5A. Prasanna Ranatunga
Hon. Minister of Urban Development & Housing,
17th and 18th Floors,
"Suhurupaya",
Subhuthipura Road,
Battaramulla.

5B. Thenuka Vidanagamage
Hon. State Minister of Urban Development & Housing,
17th and 18th Floors,
"Suhurupaya",
Subhuthipura Road,
Battaramulla.

5C. Arundika Fernando
Hon. State Minister of Urban Development & Housing,
17th and 18th Floors,
"Suhurupaya",
Subhuthipura Road,
Battaramulla.

5D. Anura Karunathilaka
Hon. Minister of Urban Development, Construction & Housing,
Ministry of Urban Development, Construction & Housing,
12th Floor,
Sethsiripaya-Stage II,
Battaramulla.

5E. Bimal N. Ratnayake

Hon. Minister of Transport, Highways and Urban Development,
Ministry of Transport, Highways and Urban Development,
12th Floor,
Sethsiripaya - Stage II,
Battaramulla.

6. N. Rupasinghe
Secretary,
Ministry of Megapolis and Western Development,
17th and 18th Floors,
"Suhurupaya",
Subhuthipura Road,
Battaramulla.

6A. W.S Sathyananda
Secretary,
Ministry of Urban Development and Housing,
17th and 18th Floors,
"Suhurupaya",
Subhuthipura Road,
Battaramulla.

6B. Ranjith Ariyaratne
Secretary,
Ministry of Urban Development, Construction and Housing,
12th Floor,
Sethsiripaya - Stage II,
Battaramulla.

6C. Senior Professor Kapila C.K. Perera

Secretary,
Ministry of Transport, Highways and
Urban Development,
12th Floor,
Sethsiripaya - Stage II,
Battaramulla.

7. Link Legend (Pvt) Ltd,
Blue Ocean Group of Companies,
No. 32,
2nd Floor,
Galle Road,
Dehiwala.

Respondents

Before	:	Dhammika Ganepola, J. Adithya Patabendige, J.
Counsel	:	Aanandalal Nanayakkara instructed by Mihiri Gunewardena for the Petitioners. Ranil Samarasooriya with Isuru Somadasa instructed by Janaki Hapuarachchi for the 1st and 2nd Respondents. Pulina Jayasuriya, S.C. for the 3rd, 4th, 5th and 6th Respondents.
Argued on	:	16.12.2025
Written Submissions	:	1st, 2nd, 3rd, 4th : 26.01.2026

tendered on and 5th Petitioners

Decided on : 27.03.2026

Dhammika Ganepola, J.

The Petitioners in the instant application, *inter alia*, seek Writs of Certiorari:

(i) to quash the Building Permit marked **P10** issued by the 1st Respondent, Dehiwala -Mount Lavinia, Municipal Council, in respect of the premises bearing No.15, Lilian Mawatha, Dehiwala,

(ii) to quash the Preliminary Planning Clearance and/or Building Plan approvals issued by the 1st to 4th Respondents to the 7th Respondent in respect of the above premises for the construction of any building in excess of G+3 Floors,

(iii) to quash the Preliminary Planning Clearance and/or Building Plan approvals issued by the 1st to 4th Respondents to the 7th Respondent in respect of the above premises for the construction of any building in contravention of the provisions of the Law and Regulations,

(iv) a Writ of Prohibition prohibiting the 1st to 4th Respondents from issuing a Certificate of Conformity and /or any approval to the condominium complex constructed at the said premises in contravention of the provisions of the Law and Regulations,

(v) a Writ of Mandamus to carry out the statutory duties of the said Respondents pursuant to Sections 28A to 28D of the Urban Development Authority Act, the Regulations made thereunder, and the Municipal Councils Ordinance in respect of the construction of any building at the above premises.

The Petitioners are members of the 'Mount Lavinia Residents Association', which aims primarily to safeguard the rights and well-being of its members. The Association has over 200 residents from the Administrative Zone, Ward No.18 of the 1st Respondent Council.

The Petitioners complain that, being a company engaged in the business of constructing residential condominium complexes, the 7th Respondent Company engaged in unlawful and/or unauthorised construction at the premises bearing No. 15, Lilian Avenue, Mount Lavinia.

The municipality area of the 1st Respondent is an 'Urban Development Area' which had been declared under Section 3(1) of the Urban Development Authority (UDA) Act. A 'Development Plan (Zoning Regulations) for the Dehiwala-Mount Lavinia Municipal Council Area', marked **P2(a)**, incorporating, *inter alia*, requirements pertinent to the zoning of lands and planning and building requirements, prepared under Section 8A of the above Act and approved by the Minister had been published in the Gazette Notification bearing No.1594/32 dated 27.03.2009 marked **P3(a)** in terms of Section 8F of the above Law. The Planning and Building Regulations 2008-2020, marked **P2(b)**, approved by the then Minister, for the relevant planning areas, including the Dehiwala Mount Lavinia Municipal Council, had also been introduced by the UDA.

The Petitioners claim that the said Planning and Building Regulations 2008-2020, marked **P2(b)**, specify certain regulations which must be strictly adhered to when constructing buildings within the Dehiwala-Mount Lavinia Municipal area. Such as the minimum extent of the land, maximum number of floors, minimum road width, minimum width of plots and the plot coverage ratio, etc. As per the UDA Law, no individual may engage in any development activity within a designated development area unless they possess a permit issued by the UDA. However, the Petitioners assert that the 7th Respondent engages in the construction of a residential condominium complex within the Municipality area of Dehiwala-Mount Lavinia in violation of the above Zoning Regulations and the Planning and Building Regulations marked P2(a).

The Petitioners further state that the Building Permit marked **P10** has been issued to the 7th Respondent at the hands of the Mayor of the 1st Respondent Council, to construct a G+6-storied 15-unit building in the premises bearing No.15, Lilian Avenue, Mount Lavinia. However, as per the information received from the 1st Respondent, as stated in a letter issued in August 2017, under Reference No. DM/MC/ME/PL/02/2015

(marked P13) by the petitioners, an application was made under section 24 of the Right to Information Act No 12 of 2016. The approval has been granted to the 7th Respondent only to construct an apartment consisting of a G+5 structure within the construction site of 19 perches.

The Petitioners contend that, as per Schedule 8 Specifications **[P3(b)]** of the Planning and Building Regulations **P2(b),** it is only permitted to construct an apartment of G+3 floors in a land with an extent of 226-500 square meters within the 1st Respondent's Municipal Area. It is claimed that a land with an extent of 19 perches is approximately 480.56 square meters. Accordingly, it is the stance of the Petitioners that a Building Permit for constructing G+5 or G+6 floors within 19 perches of land cannot be issued in terms of the applicable laws and regulations. The above Schedule 8 specifications **[P3(b)]** further specify that the construction of a building of G+5 or G+6 requires a minimum road width of 6 meters. However, according to the survey plan (P16) prepared by a licensed surveyor, the road width does not meet this requirement, as it measures less than 6 meters at any point except at the end of the road. Thus, it is said that the above circumstances constitute a clear violation of applicable Zoning, Planning and Building Regulations. Accordingly, the Petitioners claim that granting of the approval to the construction of a G+5 building at No. 15, Lillian Avenue, by the 7th Respondent pursuant to permit P13, is *ultra vires*, illegal, irrational and unreasonable.

Upon consideration, the court observed that the following facts are not in dispute.

- The declaration of the 1st Respondent, Municipal Council area, as an Urban Development Area in terms of the UDA Law.
- The UDA is empowered and has prepared a Development Plan for the Development Area under Section 8A of the Act.
- The regulations contained in the said Development Plan have been approved by the Minister in terms of Section 8 of the Act and published in the Gazette P3(a), and the said Regulations apply to the 1st Respondent's Area.
- The UDA has delegated some of its powers, duties and functions pertaining to the approval of building plans and issuing of

building permits to the relevant local authorities, to discharge or perform under the direction, supervision and control of the Authority.

- Issuance of preliminary clearance, the approval of plans, and the issuance of Certificate of Conformity in respect of constructions in excess of G+3 floors and condominiums is to be obtained from the UDA.
- Issuance of the Building Permit P10, in respect of a G+6 storied 15-unit apartment building, affected by a 20' 0" wide building line from the center of Lilian Avenue, in the name of the 7th Respondent.

The Petitioners assert that the applicable specifications to the Dehiwala Mount Lavinia Municipal Council Area are set out in Schedule 8 **[P3(b)]** of the Planning and Building Regulation **P2(b)**. The 1st and 2nd Respondents admit that Schedule 8 **[P3(b)]** contains the specifications of Land Plots for the Dehiwala Mount Lavinia Municipal Council Area. Furthermore, upon perusal of Schedule 6 of Regulations **P2(b)**, it could be observed that Schedule 8 **[P3(b)]** is applicable for the DMMC (Dehiwala Mount Lavinia Municipal Council) area instead of Schedule 6 (see footnote in Schedule 6). Therefore, there is no reason to deny the applicability of specifications referred to in Schedule 8 of Regulations P2(b) to the Land Plots in the DMMC area.

According to the letter marked **P13** issued by the Chief Municipal Engineer of the 1st Respondent Council, in response to an application made under the Right to Information Act No 12 of 2016, the 1st Respondent has granted approval to construct a 6(G+5)-floor, 15-unit apartment building on 19 perches of land, approximately 480.56 square meters at No. 15, Lilian Avenue, Mount Lavinia. Although the letter **P13** refers to a 6(G+5)-floor building, the Building Permit **P10** issued by the Mayor of the 1st Respondent in the name of the 7th Respondent indicates that it is for a 7(G+6)-floor, 15-unit building. Nevertheless, the 1st and 2nd Respondents deny the correctness of the letter **P13** issued by their Chief Municipal Engineer. The 1st and 2nd Respondents state that the Chief Municipal Engineer of the 1st Respondent Council inadvertently granted

permission to construct a building of 6(G+5) floors. It is further stated that such an inadvertence had occurred due to an error in the ledger maintained in the Chief Engineer's Department. However, the Respondents have failed to submit any documentation or evidence to substantiate their position to the satisfaction of the Court.

Notwithstanding the foregoing, as specified in Schedule 8 **[P3(b)]** of the Planning and Building Regulations, **P2(b),** it is permitted to construct a residential building with a maximum of 4 (G+3) floors in land areas between 226 and 500 square meters. Therefore, the construction of a 6(G+5) or 7(G+6)-floor building on land of 19 perches cannot be permitted under the specifications outlined in Schedule 8, Planning and Building Regulations **P2(b)**.

The 1st and 2nd Respondents contend that the Mayor of the 1st Respondent Council has approved the impugned building permit **P10**, acting under Regulation No.38(1)(e) of the said Planning and Building Regulations **P2(b),** in consultation with the planning committee of the UDA. It is claimed that the said decision was made after considering several factors such as the location of Lilian Avenue, the number of floors, the number of residential units, and future development plans for the area, etc.

The requirements outlined in Regulation 38(1)(a) of **P2(b)** essentially conform to the specifications set out in Form "C" of Schedule 8. The said Regulation reads as follows:

> *"38(1)(a) the minimum extent, number of floors, road widths, minimum width of plots and open space around the building shall be in conformity with the specifications set out in Form "C" of Schedule 6 below unless the Authority stipulates a higher or lower minimum extent and/or higher or lower width of lots in an approved development plan."*

However, Regulation 38(1)(e) enables the Chairman of the UDA to exercise his/her discretion, subject to certain limitations. Said Regulation 38(1)(e) is as follows:

> *"38(1)(e) limitations for middle-rise requirements of specified in Form "C" of Schedule 6 may be reconsidered by the "Chairman" in consultation with the Planning Committee of the Urban Development Authority, having undertaken*

an in-depth study of the surrounding development pattern, future development scenarios, character of urban fabric, use of particular building, location and other related factors."

However, it is important to note that the said discretion has been given to the Chairman of the UDA, but not to the Chairman/Mayor of the 1st Respondent Council, as averred by the 1st and 2nd Respondents. Part VII of the Planning and Building Regulations **P2(b)** defines the word "Chairman" as the Chairman of the Urban Development Authority.

Hence, the contention taken up by the 1st and the 2nd Respondents in their Statement of Objections (paragraph 9 and 16) that the Regulation 38(1)(e) of Planning and Building Regulations **P2(b)** grants the Chairman of the 1st Respondent Council the discretion to reconsider the said requirement in consultation with the Planning Committee of the Urban Development Authority, is misconceived in law. No material has been placed before this Court to conclude that the Chairman of the UDA has reconsidered the limitations of the above requirements as stipulated in *38(1)*(e) of the Planning and Building Regulations **P2(b)** in consultation with the Planning Committee of the UDA. The 3rd and the 4th Respondents, UDA and its Chairman, are silent on the same. The 3rd and the 4th Respondents have even opted not to file a Statement of Objections to the Petitioners' application and have only admitted the Development Plan **P2(a)**, Planning and Building Regulations **P2(b)**, and Gazette **P3(a)** (see motion dated 31.05.2008). Therefore, this Court is disinclined to accept the submission of the 1st and 2nd Respondents that the building permit has been approved after the reconsideration by the "Chairman" of the UDA in consultation with the Planning Committee of the Urban Development Authority. Nevertheless, no materials have been placed before the Court to the extent that any claim has been made for reconsideration under Section 38(1)(e) of the Regulations P2(b). Nor has the 7th Respondent averred so in its Statement of Objections.

On the foregoing, this Court arrives at the conclusion that the Building Permit **P10** has been approved, acting contrary to the Buildings and Planning Regulations P2(b). Accordingly, it is my view that the granting of the approval to the 7th Respondent to construct a building of 6(G+5) and

/or 7(G+6) floors by the 1st and 2nd Respondents is arbitrary, *ultra vires* and violates the Planning and Building Regulations **P2(b)**.

At this stage, it is important to note the powers delegated to the local authorities under UDA Law for planning within any area declared as a Development Area. It is on common ground that the area where the disputed premise is situated is a Development Area under UDA Law. Section 23(5) of the UDA Law authorizes the UDA to delegate its powers to the local authorities. Section 23(5) is as follows:

> *"23(5) The Authority may delegate to any officer of a local authority, in consultation with that local authority, any of its powers, duties and functions relating to planning within any area declared to be a development area under section 3, and such officer shall exercise, perform or discharge any such power, duty or function so delegated, under the direction, supervision and control of the Authority."*

Accordingly, UDA, through its Circular No. Dec /1 dated 20.03.1985, bearing reference 08/1/38 marked **P20**, has delegated some of its powers relating to planning and building to the relevant local authorities, such as Municipal Councils. As per Clause No. 9 of **P20**, these local authorities are only permitted to approve buildings (residential and commercial) comprising a ground floor to 3 floors above (G+3 floors), and any application for construction exceeding 4 floors must be approved by the UDA ministerial sub-committee. The said clause is as follows.

"9. <u>පළාත් පාලන ආයතන වලට බලතල පැවරීම</u>:

> *දැනට පළාත් පාලන ආයතන වලට බලය පැවරී ඇත්තේ බිම් මහල සහ ඊට උඩින් මහල් 3ක් සහිත (වාණිජ සහ ජනාවාස) මහල් 4 ගොඩනැඟිලි අනුමත කිරීම සඳහා පමණි. මහල් 4ට වැඩි සෑම ගොඩනැඟිල්ලක්ම නාගරික සංවර්ධනය පිළිබඳ අමාත්‍ය මණ්ඩල අනුකාරක සභාව විසින් අනුමත කළ යුතුය. එබැවින් එවැනි අයදුම්පත් නාගරික සංවර්ධන අධිකාරිය විසින් අනුකාරක සභාව හා සාකච්ඡා කොට තීරණය කිරීම සඳහා එම අධිකාරිය වෙත යැවීම පලාත්පාලන ආයතන විසින් කළ යුතුය. "*

As per Building Permit **P10**, it is evident that the Mayor of the 1st Respondent Council has acted in excess of his powers by permitting the construction of a building with 7 (G+6) floors. According to Clause 9 of Circular **P20**, the 1st Respondent lacks the authority to reconsider or approve such a construction. Any application for a building exceeding 4

floors should have been obligatorily forwarded to the UDA by the 1st Respondent for submission to the ministerial sub-committee. No material or evidence has been placed before this Court indicating that the 1st Respondent has acted accordingly. The 1st Respondent does not have the authority to reconsider such an application without forwarding it to the ministerial sub-committee. Such an endeavour is barred by Clause 13 of Circular **P20,** as this power has been withdrawn from local authorities.

Said Clause is as follows:

"13. <u>නාගරික සංවර්ධන අධිකාරියේ සැලසුම් හා ගොඩනැඟිලි රෙගුලාසිවල ඇති අභිමතය යෙදීමේ වගන්තිය ඉවත් කිරීම:</u>

> *නාගරික සංවර්ධන අධිකාරියේ සැලසුම් හා ගොඩනැඟිලි රෙගුලාසි වල අභිමතය යෙදීමේ බලය ඇතුලත් අංක.88 දරණ වගන්තිය ඉවත් කර ඇති බව කරුණාවෙන් සටහන් කරගත මැනව. එබැවින් සෑම තීරණයක්ම නාගරික සංවර්ධන අධිකාරියේ සැලසුම් හා ගොඩනැඟිලි රෙගුලාසි වලට අනුකූල විය යුතුය."*

In view of the above, it has been established before this Court that the 1st Respondent lacks the authority or power to issue a Building Permit **P10** as it is.

Considering the reasons given above and the circumstances of this case, this Court decides to grant reliefs (c), (e) and (f) prayed for in the prayer of the Petition. I order no cost. Accordingly, the application is partly allowed. This order should not prevent reconsideration and approval of the impugned building plan in accordance with the applicable Laws and Regulations.

Application is partly allowed.

Judge of the Court of Appeal

Adithya Patabendige, J.

I agree.

Judge of the Court of Appeal